

5	Fund 411 Inc. vs Centrex Software LLC 2024-01404303	Motion to Appear Pro Hac Vice The Application of Jeffrey Gilbert to Appear Pro Hac Vice for Plaintiff Fund 411 Inc. dba Fundmerica is CONTINUED to January 13, 2025, at 1:45 PM in Department C15. In the original papers, moving attorney failed to satisfy the requirements of <i>California Rules of Court</i>, Rule 9.40. The moving attorney did not timely file a verified declaration which addresses any of the requirements of Rule 9.40, subdivision (d). Specifically, Rule 9.40, subdivision (d) states: “The application must state: (1) The applicant’s residence and office address; (2) The courts to which the applicant has been admitted to practice and the dates of admission; (3) That the applicant is a licensee in good standing in those courts; (4) That the applicant is not currently suspended or disbarred in any court; (5) The title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and (6) The name, address, and telephone number of the active licensee of the State Bar of California who is attorney of record.” In the original papers, the moving attorney also failed to submit sufficient evidence to show he has satisfied the fee requirement of Rule 9.40, subdivision (e). In an Amended Application filed on 12/5/2024, moving attorney addresses some of the deficiencies mentioned above. As these late papers were filed/served two court days before the hearing, the hearing is continued in order to allow time for those served to respond/object to the amended application. Moving attorney to give notice.
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6	Randall vs Morena 2021-01193717	Motion to Seal Defendant Dr. Farhad Contractor’s Motion to Seal is DENIED. Defendant has complied with the procedural requirements for sealing under <i>California Rules of Court</i>, rule 2.551. <u>Merits</u> To grant a motion to seal, the court must expressly find that: a. an overriding interest exists that overcomes the right of public access to the record; b. the overriding interest supports sealing the records; c. a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; d. the proposed sealing is narrowly tailored; and e. no less restrictive means exist to achieve the overriding interest. <i>Cal. Rules Ct.</i>, Rule 2.550(d); <i>McGuan v. Endovascular Technologies, Inc.</i> (2010) 182 Cal.App.4th 974, 988. These findings embody constitutional requirements for a request to seal court records, protecting the First Amendment right of public access to civil trials. <i>NBC Subsidiary (KNBC–TV), Inc. v. Superior Court</i> (1999) 20 Cal.4th 1178, 1217–1218; <i>Huffy Corp. v. Superior Court</i> (2003) 112 Cal.App.4th 97, 104; <i>People v. Jackson</i> (2005) 128 Cal.App.4th 1009, 1026–1027 [finding that in determining whether to seal records, courts must weigh constitutional requirements for disclosure against such factors as privacy rights]. “The public has a First Amendment right of access to civil litigation documents filed in court and used at trial or submitted as a basis for adjudication. Substantive courtroom proceedings in ordinary civil cases, and the transcripts and records pertaining to these proceedings, are presumptively open.” <i>McNair v. National Collegiate Athletic Assn.</i> (2015) 234 Cal.App.4th 25, 31; <i>In re Marriage of Nicholas</i> (2010) 186 Cal.App.4th 1566, 1575 [strong presumption of public access to court records]. Plaintiff has not proven an overriding interest is his financial, trade secret, and privacy interest in the settlement. Here, the Declaration of Andrew Breidenbach states: “[t]he Good-Faith Settlement Motion
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